

25STCV36998 25STCV36998

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-22

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Case Number: 25STCV36998 Hearing Date: September 22, 2026 Dept: 414

25STCV36998 Lang, et al

v. Peterson

Tuesday, September 22, 2026

[TENTATIVE] ORDER ON PLAINTIFF'S MOTION TO ADOPT APPRAISED
VALUE OF \$759,000 UNDER THE PARTITION OF REAL PROPERTY ACT

I.

BACKGROUND

The verified complaint seeks partition of a single-family residence, in which Plaintiff has a 50 percent undivided interest with Defendant as tenants-in-common. A verified appraisal was filed by the court-appointed appraiser of \$759,000. No objection has been filed.

II.

DISCUSSION

The Partition of Real Property Act

("PRP") which applies to actions filed on or after January 1, 2023, "applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property." (Code Civ.

Proc., § 874.311. At trial, the court shall determine whether the Plaintiff has the right to partition, which is a matter of right as to concurrent interests in the property unless barred by a valid waiver. (Code Civ.

Proc., § 872.710.) The court "shall upon adequate proof" determine the state of

the title to the property. (Code Civ.
Proc., § 872.620.)

Plaintiff owns an undivided 50 percent
interest in the real property at issue. (Talkov decl., Ex. 3.) Defendant was
granted a 50 percent interest of the property on May 7, 2024. (Talkov decl.,
Ex. 2). Plaintiff's counsel declares that an agreement governing the partition
of the property was not provided. (Talkov decl., ¶ 2.)

Fair market value "shall" be determined
by the court except as otherwise provided. (Code Civ.
Proc., § 874.316.) Those exceptions are if the cotenants have agreed to value and
method of valuation; or if the court determines after an evidentiary hearing "that
the evidentiary value of an appraisal is outweighed by the cost of the
appraisal." (Code Civ.
Proc., § 874.316.)

III.

CONCLUSION

The Court has appointed an appraiser, who
has filed a verified appraisal. No objection has been filed. Accordingly, the
Court will conduct a hearing to "determine the fair market value of the
property" by considering the appraisal and any other evidence of value offered
by a party. (Code Civ.
Proc., § 874.316.)